



# Food and Drugs (Control of Food Premises) Act 1976

## 1976 CHAPTER 37

An Act to amend the Food and Drugs Act 1955 by prohibiting the sale, etc., of food in certain circumstances. [22nd July 1976]

**B**E IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to subsection (2) below, where on an information laid by a local authority a person is convicted of an offence under regulations made under section 13 of the Food and Drugs Act 1955 and the offence includes—

Closure of food premises or stalls dangerous to health.

- (a) the carrying on of a food business at any insanitary premises or at any premises the condition, situation or construction of which is such that food is exposed to the risk of contamination; or
- (b) the carrying on of a food business on, at or from a stall which is insanitary, or which is so situated or constructed, or is in such a condition, that the food is exposed to the risk of contamination,

1955 c. 16.

then, if the court is satisfied that—

- (i) food continues or is likely to continue to be prepared, stored, sold or offered or exposed for sale at those premises or on, at or from that stall; and
- (ii) by reason of the situation, construction or insanitary or defective condition of the premises or stall or the insanitary or defective condition of the fittings or fixtures or equipment or the infestation of vermin or the

accumulation of refuse, the carrying on of a food business at those premises or on, at or from that stall would be dangerous to health,

the court may on the application of the local authority, whether or not it makes any other order, by order (hereinafter referred to as "a closure order") prohibit the preparation, storage, sale or offer or exposure for sale at those premises or on, at or from that stall of food until the local authority certifies under subsection (4) below that such specified measures as the court considers necessary to remove the danger to health have been carried out.

(2) A closure order shall not be made unless the local authority have, not less than fourteen days before the trial of the information, given—

- (a) the person against whom the information was laid, and
- (b) if he is not that person, the owner of the premises or stall (unless the local authority are unable after reasonable inquiry to ascertain his identity),

written notice of their intention to apply for the order.

(3) The local authority shall in any notice under subsection (2) above specify the measures which, in their opinion, should be taken to remove any danger to health.

(4) Any person who wishes to carry on a food business at any premises or on, at or from any stall with respect to which a closure order is in force may make application to the local authority who, if satisfied that the measures specified by the closure order have been carried out, shall as soon as practicable and in not more than fourteen days give to the applicant a certificate to that effect, and such certificate shall be conclusive evidence of the matters therein stated.

Emergency order for closing food premises or stalls where imminent risk of danger to health.

2.—(1) Subject to subsection (2) below, where an information is, or has been, laid by a local authority in relation to an offence described in section 1(1) above and application is made by the local authority for an order under this section, the court may, if satisfied—

- (a) by evidence tendered by the local authority; and
- (b) after affording, if he appears, the person against whom the information is or was laid and, if he is not that person, the owner of the premises or stall an opportunity to be heard and tender evidence,

that the use of the premises or stall for the preparation, storage, sale or offer or exposure for sale of food involves imminent risk of danger to health, make an order (hereinafter referred to as "an emergency order") prohibiting, either absolutely or subject to

conditions, the use of those premises or that stall for those purposes until the determination of the proceedings to which the information gave rise or the issue of a certificate by the local authority under subsection (6) below, whichever is the earlier.

(2) The court shall not consider an application under this section unless it is satisfied that at least three clear days' notice in writing of intention to make that application and of the time at which it would be made has been given to the person against whom the information is or was laid and, if he is not that person, to the owner of the premises or stall.

(3) The local authority shall in any notice under subsection (2) above specify the measures which, in their opinion, should be taken to remove any danger to health.

(4) Notice for the purpose of subsection (2) above may be served in any way, except by post, authorised by rules made under section 15 of the Justices of the Peace Act 1949 for the service of a summons issued by a justice of the peace or by leaving it for him with some person who appears to be employed at the premises or stall to which the information relates. 1949 c. 101.

(5) The local authority shall serve a copy of an emergency order made under this section as soon as may be after the order has been made on the person against whom the information was laid and, if he is not that person, on the owner of the premises or stall, and shall affix a copy of it in a conspicuous position on the premises or, if practicable, on the stall.

(6) Any person who wishes to carry on a food business at any premises or on, at or from any stall, with respect to which an emergency order is in force, may make application to the local authority who, if satisfied there is no longer any risk of danger to health, shall as soon as practicable and in not more than fourteen days issue a certificate to that effect.

3.—(1) If on the trial of an information relating to an offence described in section 1(1) above the court, on the application of an interested person—

(a) determines that at the date of any emergency order the use of the premises or stall did not involve imminent risk of danger to health; and

(b) is satisfied that loss has been occasioned by the emergency order,

the court may order the local authority to pay to that person compensation of such amount as the court thinks proper.

(2) The following are interested persons for the purposes of subsection (1) above and section 4(2) below, namely—

(a) the person against whom the information was laid;

- (b) the owner of the premises or stall;
- (c) any person (not falling within paragraph (a) or (b) above) who at the time when the emergency order was made was carrying on a food business at those premises or on, at or from that stall.

**Right of appeal.**

**4.—(1)** Where an application for a closure order is refused or granted—

- (a) if the application is refused, the local authority by whom the application was made may appeal to the Crown Court;
- (b) if the application is granted, any person to whom notice of the application was given under section 1(2) above may appeal as aforesaid.

(2) Where an application for an order under section 3 above for the payment of compensation is granted or refused, the following persons may appeal to the Crown Court—

- (a) the local authority by whom the application for the emergency order in question was made; or
- (b) any interested person who applied for the payment of compensation under that section in respect of that order.

(3) Where a person applies for a certificate under section 1(4) or 2(6) above, and the local authority refuses or fails to give it, the applicant may appeal to a magistrates' court who may, if satisfied that it is proper to do so, direct the authority to give such certificate.

**1955 c. 16.**

(4) Section 117 of the Food and Drugs Act 1955 (appeals to magistrates' courts) shall apply in relation to appeals under sub-section (3) above as it applies in relation to appeals under that Act.

**Penalties.**

**5.—(1)** A person who contravenes a closure order or an emergency order shall be liable on summary conviction to a fine not exceeding £400.

(2) Section 113 of the Food and Drugs Act 1955 (contravention due to default of some other person) shall apply in relation to proceedings under this section as it applies in relation to proceedings under that Act.

**Interpretation.**

**6.—(1)** In the application of this Act in connection with an offence under any such regulations as are mentioned in section 1(1) above—

- (a) any expression to which a meaning is assigned by the regulations in question shall, unless the context otherwise requires, have the same meaning in this Act as in those regulations; and

(b) sections 1 to 5 above shall have effect as if the references to premises included places which are not premises within the meaning of those regulations.

(2) In this Act "local authority" means a district council, a London borough council, the Common Council of the City of London, the Sub-Treasurer of the Inner Temple or the Under Treasurer of the Middle Temple.

7.—(1) The following subsection applies to any offence under regulations made under section 13 of the Food and Drugs Act 1955 which includes the carrying on of a food business in any insanitary ship or in any ship the condition, situation or construction of which is such that food is exposed to the risk of contamination.

Power to make corresponding provision in relation to ships.  
1955 c. 16.

(2) In relation to an offence to which this subsection applies the Secretary of State may make regulations containing provisions corresponding, with such additions, omissions or other modifications as he thinks fit, to the provisions of sections 1 to 6 above.

(3) The penalty provided for by any provision in the regulations corresponding to section 5(1) above shall be the same as in that subsection.

(4) The power to make regulations under this section shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

8.—(1) This Act may be cited as the Food and Drugs (Control of Food Premises) Act 1976.

Short title, commencement and extent.

(2) This Act shall come into force at the end of the period of two months beginning with the date on which it is passed.

(3) This Act shall not apply to Scotland or Northern Ireland.